

		Defendant or individuals working on behalf of Defendant to otherwise induce Plaintiff into purchasing the Vehicle. Plaintiff has not pled sufficient facts to support this cause of action. The demurrer is SUSTAINED with leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendant to give notice.</i>
7.	Jaffe v. Venous Technologies Inc. 24-1415883	Before the Court is a demurrer filed by defendants Venous Technologies, Inc. and Natalie Youshaei (Defendants) to the First Amended Complaint (FAC) of plaintiff Allen V. Jaffe (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED on the 1st and 2nd causes of action and SUSTAINED without leave to amend on the 3rd cause of action. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (<i>Code of Civ. Proc. § 430.10, subd. (f).</i>) <u>Fraud claims</u> (1st and 2nd causes of action): The Court finds the FAC alleges sufficient facts to support each element of the fraud and/or promissory fraud claims with the requisite specificity. (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [elements of fraud]; <i>Rossberg v. Bank of America, N.A.</i> (2013) 219 Cal.App.4th 1481, 1498 [elements of promissory fraud]; FAC ¶¶ 5, 8-23; see also ¶¶ 24-40.) The parol evidence rule does not bar evidence of fraudulent promises, even where those promises are at variance with the terms of the written agreement. (<i>Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Ass'n.</i> (2013) 55 Cal.4th 1169, 1182-1183; see also <i>Code of Civ. Proc. § 1856, subd. (g).</i>) The economic loss rule does not bar fraud and intentional misrepresentation claims where, as here, they are independent of breach of contract. (<i>Robinson Helicopter Co. Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 991.) The demurrer is therefore OVERRULED as to the fraud claims. <u>Breach of contract</u> (3rd cause of action): Plaintiff does not oppose the demurrer as to this claim. The demurrer is thus SUSTAINED without leave to amend as to this claim. <i>Counsel for Defendants shall give notice of this ruling.</i>
8.	Fernandez v. Pacific Life Insurance Company 25-1520544	(Moot)
9.	SCSA Group, Inc. v. Department of Cannabis Control, a California State Agency 24-1433413	Before the court are two demurrers and one motion to strike filed by two defendants. In the first demurrer, the Department of Cannabis Control ("DCC") challenges the Second Amended Complaint ("FAC") filed by SCSA Group, Inc., 1 Vertical, Inc. dba 420 Central, Vertical Four, Inc. dba 420 Central - Newport Mesa and Ngu Holdings, Inc. (collectively,